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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN
MINISTRY OF LAW AND JUSTICE

Islamabad, the 8th May, 2021

No. F. 2(1)/2021-Pub.— The following Ordinance promulgated on 8th May, 2021 by the President is hereby published for general information:—

ORDINANCE No. XII OF 2021

AN

ORDINANCE

to provide for the protection of parents;

WHEREAS it is expedient to provide for the protection of parents from being expelled or evicted from houses, to provide for offences and punishments in this regard and for matters ancillary thereto;

AND WHEREAS the Senate and the National Assembly are not in session and the President of the Islamic Republic of Pakistan is satisfied that circumstances exist which render it necessary to take immediate action;

(167)

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[638(2021)/Ex. Gaz.]

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President of Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance may be called the Protection of Parents Ordinance, 2021.

(2) It shall come into force at once.

2. **Definitions.**—In this Ordinance, unless there is anything repugnant in the subject or context:—

(a) “Code” means the Code of Criminal Procedure, 1898 (Act V of 1898);

(b) “Court of Sessions” means the court of Sessions Judge, Additional Sessions Judge or Assistant Sessions Judge, as the case may be;

(c) “Child” means a direct descendant, over the age of eighteen years and includes any offspring of any age of such descendant;

(d) “house” means space or accommodation occupied for residential purposes and includes a bungalow or a flat;

(e) “parent” means a mother or a father or a grandmother or a grandfather.

3. **Punishment for eviction of parents.**—Where a child, his spouse or offspring, evicts or expels a parent from a house, whether owned or rented by such child, or in his possession by any other means, he shall be punished with rigorous imprisonment for a term not exceeding one year or with fine or with both.

4. **Parents’ right to evict children etc.**—(1) Subject to the provisions of this section, a parent shall have the right to evict a child, his spouse or offspring, from a house owned or rented by such parent or in his possession by any other means.

(2) If any child, his spouse or offspring, fails to vacate the house, upon the expiry of seven days of service of a written notice of eviction from the parent, they shall be guilty of an offence punishable with simple imprisonment for a term which may extend to thirty days or with fine which may extend to fifty thousand rupees or with both.

(3) A notice under sub-section (2) required to be served on a child, his spouse or offspring, as the case may be, for the purposes of this Ordinance, shall be treated as properly served on such child, his spouse or offspring, if—

- (a) personally served on the child, his spouse or offspring, as the case may be;
- (b) sent by registered post or courier service to the child, his spouse or offspring at their residential address;
- (c) served on the child, his spouse or offspring in the manner prescribed for service of summons under the Code of Civil Procedure, 1908 (Act V of 1908); or
- (d) served on the child, his spouse or offspring electronically.

Explanation.—It is clarified that in case the spouse or the offspring of the child are below the age of eighteen years, service to the child shall be construed as deemed service to the spouse or the offspring, as the case may be.

(4) Notwithstanding the commission of an offence under sub-section (2), where a child, his spouse or offspring, fails to vacate a house owned by his parent within the notice period specified in sub-section (2), such parent may file a written complaint to the Deputy Commissioner of the District in which the house is situated.

(5) Upon receipt of a complaint under sub-section (4), the Deputy Commissioner shall, after providing the parties an opportunity of being heard, order vacation of the house by the child, if he is satisfied that the ownership thereof vests in the parent in the official record irrespective of any defence put up by the child, including the defences that the house was constructed or purchased through the funds of the child, his spouse or offspring or anyone else, or that anyone including the child, his spouse or offspring have acquired or purchased the house from the parent.

(6) The decision under sub-section (5) shall be made by the Deputy Commissioner, preferably within seven days of the filing of the complaint, but in no case later than fourteen days.

(7) The Deputy Commissioner may, if he deems necessary, direct the officer-in-charge of a police station or any other law enforcement agency for such assistance as may be required for the purpose of implementing the order passed under this section.

Explanation.—The provisions of this section shall apply, if the house is—

- (i) solely owned by a parent who seeks eviction of the child, his spouse or offspring; or
- (ii) co-owned by both the parents, provided both the parents sign the notice under sub-section (2).

5. **Powers of police to arrest.**—Upon receiving information from a parent, the police may arrest without arrest warrant any person responsible for committing an offence under this Ordinance.

6. **Trial.**—When the person arrested under the last preceding section appears or is brought before the magistrate, he shall be tried in accordance with the procedure prescribed for the trial under Chapter-XX of the Code of Criminal Procedure, 1898 (Act V of 1898).

7. **Appeal.**—Any person aggrieved by an order under:—

- (i) sub-section (5) of section 2 may file an appeal to the Court of Sessions within thirty (30) days of such order; or
- (ii) section 3 and sub-section (2) of section 4, may file an appeal in such manner as is provided in the Code.

8. **Provisions of the Code to apply.**—Save as otherwise provided under this Ordinance, the provisions of the Code shall *mutatis mutandis* apply to the proceedings under this Ordinance.

DR. ARIF ALVI,
President.

MUHAMMAD UMER AZIZ,
Joint Secretary.